R V COLLEGE OF ENGINEERING
(An autonomous institution affiliated to VTU, Belgaum)
DEPARTMENT OF
INDUSTRIAL ENGINEERING & MANAGEMENT

HS361TA – ENTREPERNEURSHIP & INTELLECTUAL PROPERTY RIGHTS
UNIT 4
PATENT & TRADE MARK

Part A

Q No	Question	Marks	Difficulty Level	BT Level	COs
	TOPIC ID 1- Types of Intellectual Property, Patents: Introduction, Scope and salient features of patent, patentable and non-patentable inventions				
1.	**What is Intellectual Property (IP)?** Intellectual Property refers to creations of the mind such as inventions, literary and artistic works, designs, symbols, names, and images used in commerce.	2	L	2	**4**
2.	**What is a Patent?** A patent is an exclusive right granted for an invention that provides a new way of doing something or offers a new technical solution to a problem.	2	L	2	**4**
3.	**Define Trademark.** A trademark is a sign, logo, word, or symbol that distinguishes the goods or services of one business from those of others.	2	L	2	**4**
4.	**What are Geographical Indications (GIs)?** GIs are signs used on products that have a specific geographical origin and possess qualities or a reputation due to that origin (e.g., Darjeeling Tea).	2	L	2	**4**
5.	**Mention any two objectives of the Patent System.** To encourage innovation and technological advancement. To protect inventors' rights and promote industrial growth.	2	L	2	**4**

6.	**What are Patentable Inventions?** Patentable inventions are new, useful, and non-obvious inventions capable of industrial application, such as machines, processes, or chemical compositions.	2	M	2	**4**
7.	**Mention any two examples of Non-Patentable Inventions under the Indian Patent Act.** discoveries Scientific theories or mathematical methods. Inventions contrary to public order or morality.	2	M	2	**4**
8.	Rahul invents a new type of solar-powered mobile charger that charges devices twice as fast as conventional chargers. Is Rahul's invention patentable? Why? Yes, it is patentable because it is a novel and useful technological invention with industrial applicability.	2	M	3	**4**
9.	Dr. Meena discovers a new mathematical formula for predicting weather patterns.Can this discovery be patented? No, mathematical formulas are non-patentable as they are abstract ideas and not industrially applicable.	2	H	3	**4**
10.	A pharmaceutical company develops a new process to manufacture an existing drug more efficiently.Is this invention patentable? Yes, a new and innovative process that improves efficiency is patentable under the Patent Act.	2	H	3	**4**
11.	Ravi finds a naturally occurring medicinal plant that cures skin allergies and wants to patent it. Can Ravi get a patent for this? No, naturally occurring substances and discoveries of nature are non-patentable.	2	H	3	**4**
12.	A researcher designs a new variety of rice through cross-breeding. Is this patentable under the Patent Act? No, plants and animal varieties are excluded from patent protection; they may be protected under the Plant Variety Protection Act instead.	2	H	3	**4**
13.	An inventor develops a robot that automatically cleans solar panels to improve efficiency. Is this invention patentable?	2	H	3	**4**

	Yes, it is patentable as it is a new, useful, and industrially applicable technological invention.				
	TOPIC ID 2 -Patent Procedure - Overview, Transfer of Patent Rights; protection of traditional knowledge, Infringement of patents and remedy, Case studies,	2	M	3	5
13	A researcher files a patent for turmeric's healing properties, which are already known in India's traditional medicine. Why was this patent rejected? It was rejected because traditional knowledge cannot be patented.	2	H	3	**5**
14.	Company A copies the patented design of Company B's electronic component and markets it under a different name. What legal remedy can Company B seek? Company B can file a **civil suit for infringement** and claim **damages or injunction.**	2	L	3	**5**
15.	A foreign firm files for a patent in India for neem-based pesticide technology already in public use. What will the Indian Patent Office decide? The patent will be **rejected** as it lacks novelty and is based on **traditional knowledge.**	2	M	3	**5**
16.	The Indian government allows a local company to produce a patented medicine during a health emergency without the owner's consent. What is this called under patent law? **Compulsory licensing.**	2	M	3	**5**
17.	A government agency documents and publishes local medicinal practices to prevent foreign patent claims. What is the purpose of this initiative? To **protect traditional knowledge** and prevent **biopiracy.**	2	M	4	**5**
18.	Define **Compulsory licensing.** Compulsory licensing is a provision under patent law that allows a government to authorize a third party to produce, use, or sell a patented product or process **without the consent of the patent holder**, in certain circumstances such as **public health**	2	M	2	**5**

	emergencies or non-availability of the product at a reasonable price.				
	TOPIC ID 3 -Patent Search and Patent Drafting, Commercialization and Valuation of IP, Concept, function and different kinds and forms of Trade marks				
19.	**What is a Patent Search?** A patent search is the process of identifying existing patents and published applications to determine the novelty and patentability of an invention.	2	M	2	**4**
20.	**Why is Patent Search important before filing a patent application?** It helps avoid duplication, ensures the invention is new, and saves time and cost in the patenting process	2	M	2	**4**
21.	**What is the purpose of IP Valuation in business?** It helps in making financial decisions related to mergers, acquisitions, licensing, or investment based on the value of IP assets.	2	M	2	**4**
22.	**Mention any two methods used for IP Valuation.** Cost-based method & Market-based method	2	M	2	**4**
23.	**Mention any two ways of commercializing IP.** Licensing & Assignment or sale of IP rights	2	M	2	**4**
24.	**Define Commercialization of Intellectual Property.** Commercialization means converting an invention or intellectual property into a marketable product or service to generate revenue	2	M	2	**4**
25.	**What is Patent Drafting?**	2	M	2	**4**

	Patent drafting is the process of preparing the written document of a patent application, including specifications, claims, and drawings that describe the invention.				
26.	**Mention any two objectives of Trademark protection.** To prevent unfair competition. To protect the goodwill and reputation of a business	2	M	2	**4**
27.	**Name any two kinds of Trademarks.** Product Trademark Service Trademark	2	M	2	**4**
28.	**What is a Collective Trademark?** A collective trademark is used by members of an **association or group** to indicate that their goods or services belong to that collective organization.	2	M	2	**4**
29.	**What is a Service Mark?** A service mark identifies and distinguishes the **services** of one provider from those of others (e.g., logos of airlines, hotels, or banks).	2	M	2	**4**
30.	**Define a Certification Trademark.** A certification trademark certifies the **quality, origin, or material** of goods or services but is **not used by the owner** of the mark (e.g., ISI, Agmark).	2	M	2	**4**
31.	A company uses a unique symbol and name "AquaPure" to sell bottled water. What does this symbol and name represent in IP law?	2	M	2	**4**

	They represent a **Trademark**, which identifies and distinguishes the company's goods from others.				
32.	A group of textile producers from Rajasthan use the same mark "RajTextiles" to promote their regional fabrics. What type of trademark is this? It is a **Collective Trademark**, used by members of an association or group.	2	M	3	**5**
33.	The mark "AGMARK" appears on food products in India to indicate quality and standard. What kind of trademark is AGMARK? It is a **Certification Trademark**, indicating that the goods meet certain standards.	2	M	3	**5**
34.	A perfume company uses a specific bottle shape and packaging style to make its product easily recognizable. What form of trademark is this? It represents a **Shape Trademark** or **Trade Dress**, protecting the unique packaging design.	2	M	3	**5**
35.	A company tries to register the word "Laptop" as its trademark for selling computers. Can this mark be registered? Why or why not? No, because **generic terms** that describe the product itself cannot be trademarked.	2	M	2	**5**
36.	A chocolate brand plays a distinct jingle in all its advertisements that customers easily recognize. What form of trademark is this? It is a **Sound Trademark**, identifying the brand through a distinctive audio element	2	M	2	**4**
	TOPIC ID 4 -Registrable and non- registrable marks, Registration of Trade Mark; Deceptive similarity; Transfer of Trade Mark				
37.	A company registers a logo "EcoFresh" for organic products. What type of mark is this? This is a **registrable mark** because it is distinctive, non-generic, and capable of identifying the source of goods.	2	M	2	**4**
38.	A shoe company uses the name "Addidas" which is similar in appearance to "Adidas." What issue arises here?	2	M	2	**4**

	This is **deceptive similarity**, as it is likely to confuse consumers with the original brand.				
39.	A company applies for registration of a trademark with the design of the national flag. Can it be registered? No, marks that **violate law, morality, or public symbols** are **non-registrable** under trademark law.	2	M	2	**5**
40.	Two beverage companies have similar names: "Coke" and "Koke." Why might the second company face legal issues? Because of **deceptive similarity**, which can mislead consumers and infringe the original trademark.	2	L	3	**5**
41.	A company tries to register a mark "Bank" for financial services. Can this be registered? No, **common descriptive words** that indicate the type of business are **non-registrable**.	2	L	3	**4**
42.	**What is a registrable mark?** A registrable mark is a distinctive sign, logo, word, or symbol that **can be legally registered** under trademark law to identify and distinguish goods or services.	2	L	3	**4**
43.	**Give an example of a non-registrable mark.** Generic or common words like "Computer" for selling computers, or marks that are **immoral, deceptive, or identical to existing marks** are non-registrable.	2	M	2	**4**
44.	**How can a trademark be transferred?** A trademark can be transferred by **assignment or licensing**, which must be **recorded with the Trademark Office** for legal recognition.	2	M	2	**4**
45.	**Can descriptive words be registered as trademarks?** No, descriptive words that directly describe the goods or services are generally **non-registrable**, unless they acquire distinctiveness over time.	2	M	2	**4**

	TOPIC ID 5- ECO Label, Passing off, Infringement of Trade Mark with Case studies and Remedies				
46.	**What is an Eco Label?** An Eco Label is a **mark or label on products** indicating that the goods are **environmentally friendly** and meet specific ecological or sustainability standards. *Example:* "Energy Star" or "Ecomark" in India.	2	M	2	**CO5**
47.	**What is Passing Off in trademark law?** Passing Off occurs when a business **misrepresents its goods or services** as those of another established brand, leading to **consumer confusion**.	2	M	2	**CO5**
48.	A local company uses a green leaf logo on eco-friendly detergent to mislead consumers into thinking it is produced by an established brand. What legal issue arises here? It constitutes **Passing Off**, as the company is misleading consumers and misrepresenting origin.	2	M	2	**CO5**
49.	An Indian company labels its product with "Ecomark" without meeting environmental standards. Is this permissible? No, this is **misuse of Eco Label**, and the company may face **penalties under relevant environmental and trademark laws**.	2	M	2	**CO5**
50.	A firm copies the registered logo of a famous coffee brand for its products. What legal action can the original brand take? File a **civil suit for infringement** seeking **injunction** and **damages**.	2	M	2	**CO5**
51.	An electronics company uses a logo similar to "Energy Star" to suggest its appliances are energy-efficient. What is the legal concern here? This is **misuse of Eco Label** and **deceptive practice**, which can lead to penalties.	2	M	2	**CO5**
52.	A food company uses a "Green Label" claiming its products are eco-friendly, but only a part of its ingredients are organic. What legal principle applies here?	2	M	3	**CO5**

	Misrepresentation through **unauthorized Eco Label use**, actionable under consumer protection and environmental laws.				

Part B

Q No		Marks	(L/M/H)	BT Level	Sub topics
	TOPIC ID-1 Types of Intellectual Property, Patents: Introduction, Scope and salient features of patent, patentable and non-patentable inventions				
2.	**Discuss in detail the concept, scope, and salient features of patents. Explain with examples the kinds of inventions that are patentable under the Indian Patent Law. How does understanding these distinctions help in promoting innovation?"** **1. Concept of Patent:** A **patent** is a **legal right granted by the government** to an inventor for a **novel, non-obvious, and industrially applicable invention**. It allows the inventor to **exclude others from making, using, selling, or distributing** the invention without permission, generally for **20 years from the date of filing**. Patents incentivize innovation by providing **exclusive rights and commercial benefits** to inventors. **2. Scope of a Patent:** The **scope of a patent** refers to the **extent of protection** provided to the inventor. It includes: • Rights to **exclude others** from commercially exploiting the invention. • Coverage for **products, processes, and methods** that are technically novel. • Encouragement of **research and development**, as legal protection reduces the risk of copying. • Applicability in **industrial production** ensures the invention contributes to economic development. **3. Salient Features of a Patent:** The key features of a patent are: 1. **Novelty:** The invention must not have been disclosed or known before the filing date.	08	M	3	CO4

	2. **Inventive Step / Non-Obviousness:** It should not be obvious to a skilled person in the field. 3. **Industrial Applicability:** The invention must be useful and capable of practical implementation. 4. **Exclusivity:** The inventor enjoys the right to prevent others from unauthorized use. 5. **Limited Term:** Patents are valid for a fixed period (20 years in India). 6. **Disclosure Requirement:** Full disclosure of the invention ensures knowledge dissemination. **4. Patentable Inventions (with Examples):** Inventions that meet the above criteria and are **technically new, inventive, and industrially applicable** are patentable. **Examples:** • **Mechanical Device:** A new type of engine or robotic arm. • **Pharmaceutical Drug:** A novel molecule or drug delivery process. • **Process Innovation:** An improved chemical process or software algorithm with technical application.				
3.	Rahul, an engineer, develops a new water filtration device that purifies water faster than existing technologies. He discovers that a similar product exists in another country but uses a different process. Analyze whether Rahul's invention is patentable under Indian Patent Law. Discuss the concept, scope, and salient features of patents in your answer. • **Patentability Analysis:** Rahul's device may be patentable if it is **novel, involves an inventive step, and is industrially applicable**. Since the process differs from the existing foreign product, it may satisfy **novelty and inventive step**. • **Concept of Patent:** A patent grants **exclusive rights** to an inventor to prevent others from using the invention for a specific period (20 years in India). • **Scope:** Covers **products and processes**; allows commercial exploitation while preventing infringement. • **Salient Features:** 1. **Novelty** – Rahul's process is different. 2. **Inventive Step** – Faster purification method may not be obvious. 3. **Industrial Applicability** – Can be manufactured and used commercially. 4. **Exclusivity and Limited Term** – Provides legal protection for 20 years.	08	H	3	CO4

<table>
<tr><td></td><td>5. Disclosure – Rahul must disclose his invention in the patent application.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>4.</td><td>A pharmaceutical researcher wants to patent a herbal remedy for skin diseases that is already widely known in local communities. Is this invention patentable? Explain with reasons and examples of non-patentable inventions.

• This invention is non-patentable, as it involves traditional knowledge already in public use.
• Non-Patentable Inventions:
  ○ Naturally occurring substances (e.g., turmeric's medicinal properties).
  ○ Mathematical methods, abstract theories.
  ○ Inventions contrary to public order or morality.
  ○ Purely aesthetic creations (art, music).
  ○ Plants and animals (except genetically modified microorganisms).
• Reason: Patent law does not allow protection for inventions already known or part of public domain knowledge.</td><td>08</td><td>H</td><td>4</td><td>CO4</td></tr>
<tr><td>5.</td><td>A company designs a software-based algorithm to optimize energy consumption in homes and wants to file a patent. Evaluate whether this invention qualifies for patent protection, considering patentable criteria.

• Analysis: Software per se is generally non-patentable, but if it demonstrates a technical effect or industrial applicability, it can be patented.
• Patentable Criteria:
  ○ Novelty – Must be new and not disclosed before.
  ○ Inventive Step – Should be non-obvious to someone skilled in the field.
  ○ Industrial Applicability – Must have practical use, e.g., energy savings in appliances.
• If these conditions are met, the company may obtain a patent for the technical method implemented by the software.</td><td>08</td><td>H</td><td>4</td><td>CO4</td></tr>
<tr><td>6.</td><td>Explain in detail the concept of non-patentable inventions under Indian Patent Law. Discuss the reasons why certain inventions are excluded from patent protection, and illustrate your answer with relevant examples."

1. Concept of Non-Patentable Inventions:</td><td>08</td><td>H</td><td>4</td><td>CO4</td></tr>
</table>

Non-patentable inventions are those that **cannot be granted patent protection** under the law, even if they are new, useful, or inventive. These are excluded to **protect public interest, traditional knowledge, morality, and public order**, and to prevent monopolies over basic scientific principles or discoveries.

2. Reasons for Non-Patentability:
The Indian Patent Act, 1970 specifies certain categories of inventions that are **non-patentable**:

1. **Discoveries of Natural Substances:**
   - Naturally occurring materials or substances cannot be patented, even if their use is identified.
   - *Example:* Discovery of a mineral or a naturally occurring plant compound.
2. **Mathematical Methods, Algorithms, and Abstract Theories:**
   - Pure mathematical formulas or abstract scientific principles are not inventions.
   - *Example:* A formula for calculating weather patterns.
3. **Business Methods and Methods of Doing Business:**
   - Processes like marketing strategies or financial schemes are excluded.
   - *Example:* A new online payment method without technical innovation.
4. **Aesthetic Creations:**
   - Artistic works such as paintings, music, or literature are excluded; they are protected under **copyright**, not patents.
   - *Example:* A new design of a sculpture.
5. **Inventions Contrary to Public Order or Morality:**
   - Inventions whose commercialization would be socially or morally unacceptable.
   - *Example:* A chemical weapon or a process to harm humans.
6. **Plants and Animals (except genetically modified microorganisms):**
   - Naturally occurring plants and animals are excluded.
   - *Example:* A newly discovered plant species or animal breed.
7. **Traditional Knowledge and Existing Knowledge:**
   - Knowledge already known to the public or documented cannot be patented.
   - *Example:* Ayurvedic or herbal remedies like turmeric or neem.

	3. Case Studies: • **Case 1:** A researcher tried to patent turmeric's medicinal properties in India. The application was rejected because the knowledge was already in **traditional use**. • **Case 2:** An inventor attempted to patent a new financial algorithm for stock trading. The patent was refused as it was considered a **mathematical method** and a **business method**. • **Case 3:** A botanist discovered a new plant species in the forest and applied for a patent. The application was rejected because plants in their natural form are **non-patentable**. **4. Importance of Understanding Non-Patentable Inventions:** • Prevents **wasting resources** on applications that will be rejected. • Protects **public domain knowledge** and traditional knowledge from monopolization. • Encourages inventors to **focus on patentable innovations** with commercial and technological impact. • Ensures **ethical and socially responsible innovation**.				
7.	A company creates a database documenting all traditional herbal remedies to prevent misuse or unauthorized patents by foreign companies. How does this initiative help in patent law and protection of traditional knowledge? • This is a **traditional knowledge documentation effort**, creating **prior art** to prevent biopiracy. • It ensures that patents **cannot be granted on inventions already known**, safeguarding the rights of local communities and maintaining **ethical use of traditional knowledge**.	08	H	4	CO4
8.	An inventor develops a new type of biodegradable plastic and wants to protect it. He files a patent application at the Indian Patent Office.Outline the general procedure for obtaining a patent in India. **Patent Procedure Overview:** 1. **Filing Application:** Submit a provisional or complete patent application to the Patent Office. 2. **Publication:** Application is published after 18 months.	08	H	4	CO4

<table>
<tr><td></td><td>3. Examination: Request for examination is filed; the patent office examines novelty, inventive step, and industrial applicability.
4. Objections & Response: Applicant responds to objections raised by the examiner.
5. Grant of Patent: If satisfied, the patent is granted, and published in the Patent Journal.
6. Renewal & Maintenance: Annual fees must be paid to maintain the patent.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>9.</td><td>An international company develops a method to extract active compounds from a plant traditionally used in Ayurveda, claiming higher efficiency and stability. Can this method be patented, and how does it relate to the protection of traditional knowledge?

• Analysis: The method of extraction can be patentable if:
  ○ It is novel and not obvious from prior art.
  ○ Provides industrial applicability.
• Relation to TK:
  ○ Traditional knowledge of the plant's medicinal use is not patented, but technical innovations building on TK may be protected.
  ○ Ethical requirement: Proper acknowledgment or benefit-sharing may be required.

• Traditional knowledge cannot be patented directly.
• Innovations or improvements based on TK may be patentable if they meet standard patent criteria.
• Documentation of TK (like TKDL) is critical to prevent biopiracy.
• Indian law balances innovation incentives with community rights and public interest.</td><td>08</td><td>H</td><td>4</td><td>CO4</td></tr>
<tr><td>10.</td><td>Explain the concept of transfer of patent rights, its types, procedures, legal requirements, and implications. Illustrate your answer with relevant examples .”

1. Concept of Transfer of Patent Rights:

• Definition: Transfer of patent rights is the legal process by which ownership or rights of a patent are passed from the original patent holder (assignor) to another entity (assignee).
• Purpose: Enables commercialization, licensing, or collaboration while ensuring legal clarity on ownership.</td><td>08</td><td>M</td><td>3</td><td>CO4</td></tr>
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- **Significance:** Protects rights of both parties and allows **effective use of patented inventions**.

2. Types of Patent Transfer:

1. **Assignment:**
    - Complete **transfer of ownership** of a patent.
    - The assignee becomes the **new legal owner**.
    - Example: A startup transfers its patented water purification device to a manufacturing company.
2. **Licensing:**
    - **Permission to use** the patent while the inventor retains ownership.
    - Can be **exclusive or non-exclusive**.
    - Example: A software company licenses a patented algorithm to another firm for commercial use.

3. Procedure for Transfer:

- **Legal Agreement:** A written **assignment or license agreement** is executed.
- **Recording with Patent Office:**
    - Must be **filed with the Indian Patent Office** for legal recognition.
    - Provides public notice and ensures rights are enforceable.
- **Details Required:**
    - Names and addresses of assignor and assignee.
    - Patent number and title.
    - Scope of rights transferred.
    - Consideration/payment, if any.

4. Legal Requirements and Formalities:

- Transfer must be **voluntary and in writing**.
- **Signature and notarization** may be required.
- Compliance with **Indian Patent Rules 2003** ensures recordation with the office.

	• **Effectiveness:** Rights and obligations are enforceable only after **recording with the Patent Office**. **5. Implications of Transfer:** • **For Assignee:** Gains **exclusive rights** to use, sell, or license the patent. • **For Assignor:** Relinquishes ownership but may receive **financial compensation or royalties**. • **For Third Parties:** Public notice prevents disputes regarding patent ownership. • **Commercial Advantage:** Encourages **collaboration, technology transfer, and commercialization**. **6. Case Studies/Examples:** • **Case 1:** A startup holding a patent for a solar-powered lamp **assigns ownership** to a larger company for mass production. The assignment is recorded with the Patent Office. • **Case 2:** A university grants an **exclusive license** to a biotech firm to use its patented enzyme technology for drug manufacturing. Ownership remains with the university. • **Case 3:** A software company licenses its patented AI algorithm to multiple companies on a **non-exclusive basis**, retaining ownership but generating revenue.				
11.	A software company patents an algorithm for data encryption. Another company independently develops a similar algorithm and uses it in its products. Can the first company claim infringement? • **Analysis:** Patents cover the **specific technical implementation**, not abstract ideas. • **Infringement occurs** only if the second company uses **the patented method or process**. • If the second company independently develops a different method achieving the same result, it may **not constitute infringement**. • Remedies include **injunction and damages** if infringement is proven.	08	H	4	CO4
	TOPIC ID-2 Patent Procedure - Overview, Transfer of Patent Rights; protection of traditional knowledge, Infringement of patents and remedy, Case studies,				
12.	Define "Patent Transfer". Discuss the various methods by which patent rights can be transferred.	08	M	3	CO5

	Patent transfer refers to the legal process by which the ownership or rights of a patent are transferred from one party to another. The transfer of patent rights may involve the full or partial relinquishment of the patent holder's rights, either temporarily or permanently. **Methods of Patent Transfer** Patent rights can be transferred in two primary ways: 1. **Assignment of Patent Rights:** An assignment involves the permanent transfer of ownership of the patent from one person or entity to another. The assignee receives all the rights of the patent holder, including the right to manufacture, use, or sell the patented product. *Example:* A company may assign its patent rights for a specific invention to another company in exchange for compensation. 2. **Licensing of Patent Rights:** Licensing allows the patent holder to grant permission to another party to use the patented invention under specified conditions. Licensing can be exclusive or non-exclusive. o **Exclusive License:** Grants the licensee exclusive rights to use the patent, meaning the patent holder cannot use it or license it to others. o **Non-Exclusive License:** Allows the patent holder to license the patent to multiple licensees simultaneously. 3. **Pledge or Hypothecation:** This method involves using the patent as collateral for a loan. If the loan is not repaid, the lender may acquire the rights to the patent. 4. **Transmission of patent by operation of law**				
13.	What constitutes patent infringement? Discuss the types of patent infringement that can occur. & the legal remedies available to a patentee in case of patent infringement? Patent infringement occurs when a party uses, sells, manufactures, or distributes a patented invention without the consent of the patent holder. Infringement happens when the actions of an individual or entity fall within the scope of	08	H	4	CO5

the patent claims, thereby violating the exclusive rights granted to the patent holder.

Types of Patent Infringement

1. **Direct Infringement:**
   This occurs when a patented product or process is used, sold, or made without authorization from the patent holder, and it falls within the scope of the patent claims. This is the most straightforward form of infringement.
   Example: A company selling a product that is identical to the patented design without permission from the patent holder.
2. **Indirect Infringement (Contributory Infringement):**
   This occurs when a third party knowingly aids or contributes to the infringement of a patent. It includes providing components or parts of a product that are meant to be assembled into an infringing product.
   Example: A supplier providing parts that are specifically designed to be used in an infringing device.
3. **Willful Infringement:**
   This type of infringement occurs when the alleged infringer is found to have intentionally violated the patent rights, often with knowledge of the patent and its scope.
   Example: A company continues to use a patented technology even after being notified of the infringement by the patent holder.
4. **Literal Infringement:**
   This occurs when the accused product or process exactly matches the claims of the patent in terms of structure, function, or design.
5. **Doctrine of Equivalents:**
   If the accused product does not literally infringe on the patent claims but is equivalent to the patented invention (performs substantially the same function in substantially the same way), it may still be considered an infringement.

Legal Remedies Available for Patent Infringement
In the event of a patent infringement, the patentee has several legal remedies available, including both **civil** and **criminal** remedies.

1. **Injunctive Relief (Injunctions):**
   The primary remedy for patent infringement is an injunction, which is a court order preventing the infringer from continuing their infringing activity. This could be a temporary injunction (during the litigation process) or a permanent injunction (after a final ruling).
   Case Study: **Apple Inc. vs. Samsung Electronics (2011):**
   Apple filed a lawsuit against Samsung, alleging that Samsung had infringed on Apple's patents related to the design of its smartphones. The court granted Apple a preliminary injunction, preventing Samsung from selling certain devices that were found to infringe Apple's patents.
2. **Monetary Damages:**
   The patent holder can be awarded monetary damages, which may include:
   - **Actual Damages:** Compensation for the actual loss suffered by the patentee as a result of the infringement, which may include lost profits.
   - **Statutory Damages:** In some jurisdictions, the court may award statutory damages, which are predefined by law and do not require proof of actual damages.
   - **Enhanced Damages:** In the case of willful infringement, courts may award enhanced damages, typically up to three times the actual damages to serve as a deterrent.
     Case Study: **Eli Lilly & Co. vs. Actavis (2007):**
     Eli Lilly sued Actavis for infringing on its patent for the drug Strattera. The court awarded Eli Lilly $100 million in damages after proving that Actavis had willfully infringed the patent.
3. **Seizure of Infringing Goods:**
   The patent holder can seek the seizure of infringing goods, especially if the infringement is found to be ongoing and the goods are being distributed or sold in violation of the patent.
   Case Study: **Ricoh Co. Ltd. vs. Quanta Computer Inc. (2007):**
   Ricoh filed for the seizure of Quanta's computers that were found to be infringing Ricoh's patents. The court allowed the seizure of these goods to prevent further harm to Ricoh.
4. **Criminal Remedies:**
   In some jurisdictions, patent infringement may lead to criminal prosecution, particularly in cases of willful infringement where there is evidence of deliberate violation of the patent rights. Penalties may include fines or imprisonment.
5. **Alternative Dispute Resolution (ADR):**
   Patent disputes can also be resolved through alternative means such as **mediation** or **arbitration**, where both

	parties attempt to settle the matter outside of court. ADR can be faster and less expensive than litigation.				
14.	**Discuss the concept of patent infringement in detail. Include various types of infringement with relevant case studies to illustrate the practical application of patent law.** **Definition** Patent infringement occurs when a person or entity makes, uses, sells, or distributes a patented invention without the permission of the patent holder, thereby violating the exclusive rights granted by the patent. Infringement is a breach of the patent holder's intellectual property rights, and the patent holder has the right to seek legal remedies to enforce these rights. **Types of Patent Infringement:** 1. **Direct Infringement:** Direct infringement is the simplest form of patent infringement. It occurs when the accused product or process directly falls within the scope of the patent claims. This means that the product or process uses the patented invention without permission from the patent holder. *Example:* If a company manufactures a product that is identical to a patented device without authorization, it is a case of direct infringement. 2. **Indirect Infringement (Contributory Infringement):** Indirect infringement occurs when a third party knowingly contributes to or induces the infringement of a patent by another party. This can include selling parts or components that are used to create an infringing product. *Example:* A company selling a component that is used in a device which violates a patented invention may be liable for contributory infringement. 3. **Willful Infringement:** Willful infringement refers to cases where the infringer knowingly and deliberately violates a patent, often with awareness of the patent and its claims. Courts may award enhanced damages in cases of willful infringement as a deterrent. *Example:* If a company continues to use a patented technology despite receiving a cease-and-desist letter from the patent holder, this may be considered willful infringement.	08	H	4	

	4. **Literal Infringement:** Literal infringement occurs when the accused product or process directly matches the language of the patent claims. It involves an exact copy of the patented invention. *Example:* If a manufacturer produces a product that exactly replicates a patented design, such as the shape, structure, and function, it constitutes literal infringement. 5. **Doctrine of Equivalents:** The doctrine of equivalents allows for a broader interpretation of patent claims. Even if the accused product does not literally infringe on the patent's claims, it can still infringe if it performs substantially the same function in substantially the same way, achieving the same result. *Example:* If a device has a slightly different component but operates in the same way as the patented invention, it might still be found infringing under the doctrine of equivalents. **Case Studies on Patent Infringement:** 1. **Apple Inc. v. Samsung Electronics Co. Ltd. (2011):** **Background:** Apple sued Samsung for infringing its patents related to smartphone design and user interface, claiming that Samsung copied features such as the rounded corners, grid icon layout, and touchscreen ~~features of the iPhone and iPad.~~ **Legal Reasoning:** The court found that Samsung had violated Apple's design patents, particularly related to the appearance and layout of the devices. The court ruled that Samsung's products were substantially similar to Apple's designs. **Outcome:** Apple was awarded over $1 billion in damages, though the amount was later reduced. The case highlighted the importance of design patents in the tech industry and the legal ramifications of infringement in consumer electronics. The case was eventually settled in 2014, with both companies agreeing to a confidential resolution.				
15.	**Define Traditional Knowledge (TK) and explain its significance in the context of Intellectual Property Rights.** Traditional Knowledge (TK) refers to the knowledge, innovations, and practices of indigenous and local communities developed from experience gained over centuries and adapted to local culture and environment. It	08	M	3	CO5

	includes knowledge of medicinal plants, agriculture, biodiversity conservation, folklore, and handicrafts. **Significance in IPR Context:** 1. **Cultural Heritage Preservation:** TK represents the cultural identity and heritage of communities; protecting it ensures intergenerational transmission of indigenous wisdom. 2. **Biodiversity Conservation:** Local communities possess extensive knowledge about sustainable resource management and medicinal use of plants, which is vital for environmental conservation. 3. **Prevention of Biopiracy:** Many cases of unauthorized patents on traditional remedies (e.g., neem, turmeric, basmati rice) highlight the need for legal protection against misappropriation by foreign entities. 4. **Economic Empowerment:** Recognizing and protecting TK can lead to equitable benefit-sharing, providing economic incentives to communities through licensing and commercialization. 5. **Integration with Modern Science:** TK complements modern research, particularly in pharmaceuticals and agriculture, by providing leads for innovation and product development. 6. **Legal Frameworks:** o In India, protection of TK is ensured through the **Traditional Knowledge Digital Library (TKDL)**, **Biological Diversity Act, 2002**, and provisions under **Patents Act, 1970** (Sections 3(p) and 10). o Internationally, the **Convention on Biological Diversity (CBD, 1992)** and **Nagoya Protocol (2010)** emphasize prior informed consent and fair benefit sharing. 7. **Documentation and Access:** TK documentation initiatives prevent exploitation while maintaining confidentiality over sensitive knowledge.				
16.	**Discuss the importance of protecting Traditional Knowledge (TK) with reference to**	08	H	4	CO5

relevant case studies on biopiracy.

Meaning of Traditional Knowledge:
Traditional Knowledge (TK) refers to the collective wisdom, know-how, innovations, and practices developed by indigenous and local communities over generations. It includes information about medicinal plants, agriculture, folklore, and biodiversity.

Need for Protection:

1. **To prevent biopiracy:** Unauthorized use or patenting of TK by corporations without benefit-sharing.
2. **To ensure equitable benefit-sharing:** Communities should receive fair compensation for their knowledge.
3. **To preserve cultural heritage:** TK is a living tradition, vital for cultural identity and continuity.
4. **To promote sustainable development:** TK supports conservation and sustainable use of resources.
5. **To ensure recognition and respect for indigenous contributions.**

Important Case Studies:

1. Turmeric Case (India vs. US, 1995)

- **Facts:** Two Indian-origin scientists at the University of Mississippi Medical Center were granted a US patent for the use of turmeric in wound healing.
- **Issue:** The use of turmeric for healing wounds had been known and practiced in India for centuries.
- **Outcome:** The **Council of Scientific and Industrial Research (CSIR), India** challenged the patent by submitting ancient Sanskrit texts and references as prior art.
- **Result:** The US Patent Office revoked the patent, recognizing it as **traditional knowledge** and not a novel invention.
- **Significance:** It set a global precedent for rejecting patents based on existing TK.

2. Neem Case (India vs. W.R. Grace & Co., 1994)

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Facts: The US-based company W.R. Grace & Co. obtained a patent on a method for extracting neem oil with antifungal properties.
Issue: Neem’s pesticidal and medicinal uses were well known in Indian traditional practices.
Outcome: The European Patent Office (EPO) revoked the patent after India, along with NGOs, demonstrated prior use and traditional application.
Significance: Reinforced the principle that traditional knowledge cannot be monopolized.

3. Basmati Rice Case (India vs. RiceTec Inc., 1997)

Facts: The US company RiceTec Inc. sought to patent a new variety of Basmati rice and label it as “American Basmati.”
Issue: Basmati is traditionally cultivated in India and Pakistan, known for its unique aroma and quality.
Outcome: India objected, arguing it violated Geographical Indication (GI) and TK rights.
Result: The US Patent and Trademark Office withdrew several key claims by RiceTec.
Significance: Highlighted the importance of GI protection for traditional agricultural products.

<h3>Legal and Institutional Measures:</h3>

Traditional Knowledge Digital Library (TKDL):
Developed by CSIR to document TK in digital form and prevent misappropriation by making it accessible to patent examiners worldwide.
Biological Diversity Act, 2002:
Ensures benefit-sharing and protection of community rights.
Patent Act, 1970 (Section 3(p)):
Excludes inventions based on traditional knowledge from patentability.

</td><td></td><td></td><td></td><td></td></tr>
<tr><td>17.</td><td>Explain the procedure for obtaining a patent in India and discuss the rights of a patentee under the Patents Act, 1970.</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

I. Meaning of Patent:

A **patent** is an exclusive right granted by the government to an inventor for an invention that is **new, involves an inventive step**, and is **capable of industrial application**. It prevents others from making, using, selling, or importing the invention without permission for a limited period (20 years).

II. Procedure for Obtaining a Patent in India:

The process is governed by the **Indian Patents Act, 1970** and **Patent Rules, 2003**.
The steps are as follows:

1. Patent Search (Optional but Recommended):

Before applying, a search is conducted to ensure that the invention is **novel** and not already patented.

2. Filing of Patent Application (Sections 6–7):

- Filed with the **Indian Patent Office** in prescribed forms.
- Can be a **Provisional** or **Complete Specification**.
  - **Provisional Application:** Filed to claim a priority date; complete specification to be filed within 12 months.
  - **Complete Specification:** Contains full details of the invention.

3. Publication of the Application (Section 11A):

- The patent application is published after **18 months** from the filing or priority date.
- Early publication can be requested by the applicant.

4. Examination of Application (Section 12):

- Request for examination (RFE) must be filed within **48 months** from the priority date.
- The application is examined by a patent examiner for **novelty**, **inventive step**, and **industrial applicability**.

5. Response to Examination Report (Section 14):

- Applicant must respond to objections raised in the **First Examination Report (FER)** within 6 months.

6. Pre-Grant and Post-Grant Opposition (Sections 25(1) & 25(2)):

- **Pre-grant opposition:** Can be filed by any person before patent is granted.
- **Post-grant opposition:** Can be filed within **one year** from the date of grant.

7. Grant of Patent (Section 43):

- If all conditions are met, the Controller grants the patent and publishes it in the Patent Journal.

8. Renewal of Patent:

- The patent is valid for **20 years** from the filing date.
- Renewal fees must be paid annually from the **third year** onwards.

III. Rights of a Patentee (Sections 48–50):

1. **Exclusive Rights:**
   - To make, use, sell, or distribute the patented invention in India.
   - To prevent others from exploiting the invention without consent.
2. **Right to License:**
   - The patentee can grant licenses or assign patent rights to others, generating revenue.
3. **Right to Sue for Infringement:**

<table>
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The patentee can file a suit in the District Court or High Court for infringement.
4. Right to Surrender:
The patentee may surrender the patent voluntarily under Section 63.
5. Right to Claim Damages or Injunction:
The patentee is entitled to seek damages and injunctive relief against the infringer.
6. Right of Priority:
In case of international filings under the Paris Convention, the patentee enjoys priority from the date of the Indian filing.
<h3>IV. Limitation and Exceptions:</h3>
Use for research, education, or government purposes is allowed under certain conditions (Section 47).
Compulsory licensing (Section 84): Granted if patented product is not available to the public at a reasonable price.
</td><td></td><td></td><td></td><td></td></tr>
<tr><td>18.</td><td>
<h3>Explain the concept of Compulsory Licensing under the Indian Patents Act, 1970 and discuss its importance with the help of a leading case law.</h3>
A Compulsory License (CL) is an authorization granted by the government to a third party (other than the patent holder) to manufacture, use, or sell a patented invention without the consent of the patent owner.
It serves as a safeguard against the abuse of patent rights and ensures that patented products are available to the public at reasonable prices.
<h3>Legal Provision:</h3>
The concept is governed by Sections 84–92 of the Indian Patents Act, 1970.
<h3>Grounds for Grant of Compulsory License (Section 84):</h3>
Any person can apply for a compulsory license after three years from the date of grant of the patent if any of the
</td><td>08</td><td>H</td><td>4</td><td>CO5</td></tr>
</table>

following conditions are met:

1. **Reasonable Requirements of the Public Not Met:**
   The patented invention is not being made available sufficiently to meet the needs of the public.
2. **Non-availability at a Reasonable Price:**
   The patented product is excessively priced and unaffordable to the general public.
3. **Non-working of the Patent in India:**
   The invention is not being manufactured or used in India on a commercial scale.

Other Provisions:

- **Section 85:** Revocation of a patent if the compulsory license fails to meet public requirements.
- **Section 90:** Terms and conditions of CL ensure royalty to the patentee.
- **Section 92:** The government may issue a CL during **national emergencies** or **public health crises** (e.g., epidemics).

Objective and Importance:

- Balances **public interest and patentee rights.**
- Prevents **monopolistic practices.**
- Ensures **access to life-saving medicines** and essential technologies.
- Promotes **domestic manufacturing** and technological advancement.

Case Study:

Bayer Corporation v. Natco Pharma Ltd. (2013)

- **Facts:** Bayer Corporation held a patent for **Sorafenib Tosylate (Nexavar)**, a life-saving drug for liver and kidney cancer. The drug was priced at around **₹2,80,000 per month**, unaffordable for most patients in India.
- **Issue:** Natco Pharma applied for a **compulsory license** under Section 84, arguing that Bayer had not made

	the drug reasonably accessible to the public.
	• **Decision:** The **Controller General of Patents (India)** granted the compulsory license to Natco Pharma.
	   ○ Natco was required to sell the drug at **₹8,800 per month** and pay **6% royalty** on net sales to Bayer.
	• **Significance:**
	   ○ It was **India's first-ever compulsory license**.
	   ○ Upheld India's commitment to **public health and affordability** under the **TRIPS Agreement (WTO)**.
	   ○ Recognized the principle that **patent rights are not absolute** but subject to public welfare.				

	TOPIC ID 3 -Patent Search and Patent Drafting, Commercialization and Valuation of IP, Concept, function and different kinds and forms of Trade marks				
19.	**Explain the concepts of Patent Search and Patent Drafting. Discuss their importance in the process of patent protection.** A **Patent Search** is the process of exploring existing patent databases and publications to determine whether an invention is **novel** and **non-obvious** before filing a patent application. It helps in identifying **prior art** — any previous disclosure or existing technology similar to the proposed invention. **Objectives of Patent Search:** 1. **To Assess Novelty:** Ensures the invention is new and not already patented. 2. **To Avoid Infringement:** Helps in identifying existing patents and avoiding infringement of others' rights. 3. **To Understand Technological Trends:** Provides insights into research and development in the same field. 4. **To Support Patent Drafting:** Helps the inventor prepare strong claims by differentiating from prior art. 5. **To Evaluate Commercial Viability:** Determines the scope of patent protection and market opportunities.	08	M	3	CO4

Types of Patent Searches:

1. **Novelty Search:** Determines if the invention is new.
2. **Freedom to Operate (FTO) Search:** Ensures the invention does not infringe existing patents.
3. **Validity Search:** Checks if a granted patent can be challenged.
4. **State-of-the-Art Search:** Reviews the overall technological field for innovations.
5. **Patentability Search:** Evaluates novelty, inventive step, and industrial application.

Major Patent Databases Used:

- **Indian Patent Advanced Search System (InPASS)**
- **Google Patents**
- **WIPO PATENTSCOPE**
- **USPTO Database**
- **Espacenet (European Patent Office)**

Meaning of Patent Drafting:

Patent Drafting is the process of **preparing the written document** (specification) for filing a patent application. It defines the scope of legal protection sought for an invention.

A good patent draft is both a **technical** and **legal document** that must clearly describe the invention so that a person skilled in the art can reproduce it.

Components of a Patent Specification:

1. **Title of the Invention** – Concise and descriptive.
2. **Field of the Invention** – Indicates the area of technology.
3. **Background (Prior Art)** – Describes existing problems or limitations.
4. **Summary of the Invention** – Highlights the inventive concept.

<table>
<tr><td></td><td>5. Detailed Description – Provides technical details, drawings, and examples.
6. Claims – Define the legal boundaries of the invention (most critical part).
7. Abstract – Brief summary for quick understanding.

Importance of Patent Drafting:

1. Defines Legal Protection:
The wording of claims determines the extent of monopoly granted.
2. Reduces Litigation Risks:
A well-drafted patent avoids ambiguity and legal disputes.
3. Supports Commercialization:
Helps in licensing and technology transfer negotiations.
4. Enhances Patent Strength:
Clear and precise drafting increases enforceability.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>20.</td><td>Explain the importance of Patent Drafting in protecting an invention with an example.

Importance of Patent Drafting:

1. Defines Legal Scope:
Claims determine what exactly is protected under the law.
2. Avoids Ambiguity:
Precise drafting reduces chances of legal disputes or rejection.
3. Strengthens Patent Validity:
Clear disclosure supports novelty and inventive step.
4. Supports Licensing and Commercialization:
Investors and companies rely on clear claims for valuation.
5. Facilitates Global Protection:
Helps in filing patents internationally under PCT (Patent Cooperation Treaty).
6. Avoids Infringement Risks:</td><td>08</td><td>M</td><td>3</td><td>CO4</td></tr>
</table>

	Proper drafting ensures the patentee's rights are well-defined. **Example:** In *Novartis AG v. Union of India (2013)*, weak drafting and failure to prove novelty led to rejection of the patent on the drug "Gleevec."				

21.	**Explain the concept of Commercialization of Intellectual Property and discuss various methods through which IP can be commercialized.**
	
	Meaning of Commercialization:
	Commercialization of Intellectual Property (IP) refers to the process of **converting intellectual assets such as patents, copyrights, trademarks, or designs into marketable products or services** to generate economic benefits. It bridges innovation and business by transforming ideas into revenue.
	
	Methods of IP Commercialization:
	
	1. **Licensing:**
	  o The IP owner (licensor) permits another party (licensee) to use the IP in exchange for **royalties or fees**.
	  o Types: Exclusive, Non-exclusive, and Compulsory licensing.
	  o Example: Software companies licensing products to users.
	2. **Assignment or Sale:**
	  o The IP rights are **permanently transferred** to another entity for a lump-sum payment.
	  o Example: Sale of patent rights to a pharmaceutical firm.
	3. **Franchising:**
	  o A business model where brand, trademark, and know-how are shared with franchisees.
	  o Example: McDonald's franchising its brand globally.
	4. **Joint Ventures / Strategic Alliances:**
	  o Collaborative commercialization involving shared R&D, production, and profits.
	  o Example: Technology co-development between automotive and battery firms.
	5. **Spin-Offs / Start-ups:**
	  o Universities or companies establish new firms to commercialize specific IP.
		08	M	3	CO4

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Example: University research labs forming biotech start-ups.
6. Technology Transfer:
Transferring IP from research institutions to industry for product development.
<h3>Importance of IP Commercialization:</h3>

Encourages innovation and entrepreneurship.
Promotes economic growth through technology-driven industries.
Helps recover R&D investments.
Builds competitive advantage and brand reputation.
Enables international collaboration and foreign investment.

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<td>22.</td>
<td>
<h3>What is Licensing in IP Commercialization? Discuss its types and advantages.</h3>
Licensing is a legal arrangement in which the IP owner (licensor) grants another party (licensee) the right to use the IP in return for compensation, usually royalties or fees.
Types of Licensing:

Exclusive License:
Only one licensee has rights; even the owner cannot use the IP.
Non-Exclusive License:
Multiple licensees can use the same IP.
Compulsory License:
Granted by the government in public interest (e.g., life-saving drugs).
Cross-Licensing:
Exchange of IP rights between two companies.

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</table>

	Advantages: • Expands market reach without heavy investment. • Generates continuous income through royalties. • Encourages collaboration and innovation. • Reduces risk for both licensor and licensee. **Example:** In the pharma industry, **AstraZeneca** and **Cipla** enter licensing agreements to produce patented medicines affordably.				
23.	**What are the challenges faced in Commercialization and Valuation of IP in developing countries like India? Suggest suitable measures.** **Challenges:** 1. **Lack of Awareness:** Many inventors are unaware of IP protection and commercialization benefits. 2. **Limited Access to Finance:** Banks and investors hesitate to fund IP-based ventures due to uncertain valuation. 3. **Difficulty in Valuation:** Absence of standardized valuation methods for intangible assets. 4. **Weak Industry–Academia Linkages:** Poor collaboration between research institutions and industry. 5. **Enforcement Issues:** IP infringement and piracy reduce commercialization incentives. 6. **Limited Professional Expertise:** Shortage of skilled IP managers, valuers, and licensing professionals. **Measures:** • Promote **IP education** and training programs.	08	M	3	CO4

	• Encourage **technology transfer offices (TTOs)** in universities. • Establish **IP financing mechanisms** and venture funds. • Develop **standard IP valuation guidelines**. • Strengthen **enforcement and dispute resolution** mechanisms.				
24.	**Define a Trademark. Explain its concept and legal significance under the Trade Marks Act, 1999.** According to **Section 2(1)(zb)** of the *Trade Marks Act, 1999*, a *trademark* means a mark capable of being represented graphically and distinguishing the goods or services of one person from those of others. It includes shapes of goods, packaging, and combinations of colors. **Concept:** A trademark is an **intellectual property right** that protects brand identity. It helps consumers identify the origin and quality of products or services. Examples: *Nike swoosh*, *Apple logo*, *Tata*. **Legal Significance:** 1. Provides **exclusive rights** to use the mark. 2. Prevents **unauthorized use or infringement** by others. 3. Builds **brand goodwill and consumer trust**. 4. Enables **licensing and franchising opportunities**. 5. Facilitates **international recognition** through treaties like *Madrid Protocol*.	08	M	3	CO4
25.	**Explain the different forms of Trademarks with examples.** **Forms of Trademarks:** 1. **Word Marks:**	08	M	3	CO4

	Consist of words, letters, or numbers. *Example: TATA, BMW, Infosys.* 2. **Device Marks / Logos:** Visual representation or symbols. *Example:* The *Nike swoosh*, *Apple logo.* 3. **Label Marks:** Combination of words, graphics, and colors on packaging. *Example: Parle-G biscuit wrapper.* 4. **Shape Marks:** The 3D shape of a product or its packaging. *Example: Coca-Cola bottle.* 5. **Sound Marks:** Unique sounds that distinguish goods/services. *Example: Nokia tune*, *Yahoo yodel.* 6. **Color Marks:** A specific color or color combination associated with a brand. *Example: Cadbury's purple packaging.* 7. **Pattern Marks:** Unique patterns used on goods. *Example: Louis Vuitton monogram pattern.*				
26.	**Explain the main functions & different kinds of Trademarks recognized under Indian law with suitable examples.** **Functions of a Trademark:** 1. **Identification Function:** Distinguishes one trader's goods or services from another's. *Example:* Coca-Cola vs. Pepsi. 2. **Source Indicator Function:**	08	M	3	CO4

Indicates the origin or producer of goods.
Example: The Apple logo indicates products made by Apple Inc.*

3. **Quality Assurance Function:**
   Implies a certain standard or quality to consumers.
   Example: The ISI mark signifies safety and reliability.*
4. **Advertising Function:**
   Acts as a marketing tool to promote products.
   Example: "Just Do It" slogan of Nike.*
5. **Investment / Goodwill Function:**
   Represents business reputation and brand equity that can be licensed or sold.

Kinds of Trademarks:

1. **Product Marks:**
   Used for goods rather than services.
   Example: Adidas, *Amul*, *Sony.*
2. **Service Marks:**
   Used to identify services instead of physical goods.
   Example: Air India, *ICICI Bank.*
3. **Collective Marks:**
   Used by members of an association to identify products/services meeting common standards.
   Example: CA (Chartered Accountant) mark by ICAI.
4. **Certification Marks:**
   Certify certain characteristics such as origin, quality, or manufacturing process.
   Example: ISI, *Agmark.*
5. **Well-Known Marks:**
   Recognized widely by the public, even without registration in a specific class.
   Example: Google, *Mercedes.*
6. **Unconventional Marks:**
   Includes sound marks, smell marks, color marks, or shape marks.
   Example: Nokia ringtone, *Coca-Cola bottle shape.*

<table>
<tr><td></td><td>TOPIC ID 4 -Registrable and non- registrable marks, Registration of Trade Mark; Deceptive similarity; Transfer of Trade Mark</td><td></td><td></td><td></td><td></td></tr>
<tr><td>27.</td><td>Explain the meaning of a registrable trademark under the Trade Marks Act, 1999. What are the essential conditions for registration?

A registrable trademark is one that satisfies the legal requirements under the Trade Marks Act, 1999 and can be entered in the Register of Trademarks, granting the owner exclusive rights of use.

Essential Conditions for Registration (Sections 9 & 11):

1. Distinctiveness:
The mark must be capable of distinguishing goods or services of one person from another.
Example: “Nike” for sportswear.
2. Graphical Representation:
The mark must be representable visually — words, logos, shapes, or colors.
3. Non-Descriptive:
It should not describe the quality, kind, quantity, or geographical origin of the goods.
Example: “Sweet” cannot be registered for chocolates.
4. Not Deceptive or Scandalous:
It should not mislead the public or offend religious sentiments.
5. No Conflict with Existing Marks:
It must not be identical or confusingly similar to an existing registered mark.
6. Use in Trade:
The mark must be intended to be used in commerce.</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
<tr><td>28.</td><td>Discuss the absolute grounds for refusal of trademark registration under Section 9 of the</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

<table>
<tr><td></td><td>Trade Marks Act, 1999.

Section 9 — Absolute Grounds for Refusal:

1. Lack of Distinctiveness:
Marks that cannot distinguish goods or services of one person from another.
Example: Common words like “Best,” “Super” for generic use.
2. Descriptive Marks:
Marks describing kind, quality, quantity, intended purpose, or geographical origin.
Example: “Silky” for fabrics.
3. Customary in Trade:
Marks commonly used in current language or trade.
Example: “Soap” for soap products.
4. Deceptive or Confusing Marks:
Marks likely to deceive the public about nature, quality, or origin.
Example: “Himalaya Pure Honey” if not sourced from the Himalayas.
5. Scandalous or Immoral Matter:
Marks containing offensive or indecent material are barred.
6. Prohibited by Law:
Marks that use national symbols, emblems, or flags prohibited under the Emblems and Names (Prevention of Improper Use) Act, 1950.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>29.</td><td>Explain the relative grounds for refusal of trademark registration under Section 11 of the Trade Marks Act, 1999 with one case.

Section 11 — Relative Grounds for Refusal:

1. Similarity with Earlier Marks:
A mark cannot be registered if it is identical or similar to an existing trademark for similar goods/services.
Example: “Puma” and “Pumma.”</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
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2. Likelihood of Confusion:
If the public is likely to be confused about the origin or affiliation of goods.
3. Well-Known Trademarks:
Marks similar to well-known trademarks, even for dissimilar goods, cannot be registered.
Example: “Google Electronics.”
4. Conflict with Earlier Trade Name:
A mark conflicting with an existing business name is refused.
5. Association with Earlier Mark:
Marks that create an impression of association with earlier marks are barred.

Case Example:
Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001) — Court stressed preventing consumer confusion even with similar sounding marks in the pharmaceutical sector.
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<tr><td>30.</td><td>
Differentiate between registrable and non-registrable trademarks with examples.
<table>
<tr><th>Basis</th><th>Registrable Trademarks</th><th>Non-Registrable Trademarks</th></tr>
<tr><td>Meaning</td><td>Marks fulfilling legal requirements of distinctiveness and legality.</td><td>Marks prohibited under Sections 9 & 11.</td></tr>
<tr><td>Distinctiveness</td><td>Capable of distinguishing goods/services.</td><td>Generic or descriptive marks.</td></tr>
<tr><td>Legality</td><td>Not offensive or deceptive.</td><td>Scandalous, immoral, or deceptive marks.</td></tr>
<tr><td>Conflict</td><td>Not similar to existing marks.</td><td>Identical or confusingly similar marks.</td></tr>
<tr><td>Examples</td><td>TATA, Nike, Amul, Apple logo.</td><td>Super Soap, Best Electronics, Bharat Flag logo.</td></tr>
</table>
</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
<tr><td>31.</td><td>Explain with case laws the circumstances in which a mark is considered non-registrable in India.</td><td>8</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

<table>
<tr><td></td><td>Circumstances of Non-Registration:

1. Descriptive or Generic Marks:
Words describing product characteristics cannot be registered.
Case: Imperial Tobacco Co. v. Registrar of Trade Marks (1977) — “Simla” for cigarettes was held descriptive of geographical origin.
2. Deceptively Similar Marks:
If it causes confusion among consumers.
Case: Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001) — Similar sounding medicinal marks were disallowed.
3. Use of National Symbols:
Prohibited by Emblems and Names Act, 1950.
Example: National emblem or Ashoka Chakra cannot be registered.
4. Scandalous or Immoral Marks:
Marks offending public morality or religious sentiments are refused.
Example: Religious deities’ names for alcohol products.
5. Well-Known Mark Conflict:
Marks resembling famous international brands are rejected.
Case: Daimler Benz v. Hybo Hindustan (1994) — “Benz” used for underwear refused as it diluted the prestige of the luxury car brand.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>32.</td><td>Give the outline of the procedure for Trade Mark registration in India.

Step-by-Step Procedure (Trade Marks Act, 1999):

1. Trademark Search (Optional but Recommended):
o Check the existing registry for similar marks using TMR (Trade Marks Registry) search.
2. Filing the Application (Form TM-A):
o File with the Office of the Registrar of Trade Marks specifying:
▪ Applicant details
▪ Mark and class of goods/services</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

<table>
<tr><td></td><td>Affidavit of use (if required)
3. Examination of Application:
o Registrar examines the application for absolute and relative grounds of refusal.
o Section 11 & 9 are checked (distinctiveness, conflict, legality).
4. Examination Report / Objection:
o Registrar issues an Examination Report if objections exist.
o Applicant must respond within 1 month (extendable to 3 months).
5. Acceptance or Refusal:
o If no objection or objections resolved → application accepted.
o If unresolved → application refused (can appeal).
6. Publication in Trade Marks Journal:
o The accepted mark is published for 4 months.
o Third parties may file opposition.
7. Opposition (if any):
o Heard by the Registrar before registration.
o If no opposition or opposition rejected → proceed to registration.
8. Registration & Certificate Issuance:
o Registered mark enters the Register of Trade Marks.
o Certificate of Registration issued (valid for 10 years, renewable indefinitely)</td><td></td><td></td><td></td><td></td></tr>
<tr><td>33.</td><td>Explain the legal remedies available for infringement of a registered Trade Mark in India.

Unauthorized use of a registered trade mark is an offense under Section 29 of the Trade Marks Act, 1999.

Legal Remedies:

1. Civil Remedies:
o Injunction: Prevents further use of the infringing mark.</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

	○ **Damages / Account of Profits:** Recover losses or profits gained by infringer. ○ **Delivery of Infringing Goods:** Seizure or destruction of infringing items. 2. **Criminal Remedies (Section 103):** ○ Punishable by **imprisonment** up to 3 years or **fine** up to 2 lakh rupees or both. 3. **Border Measures:** ○ Seizure of counterfeit goods at import/export checkpoints. **Case Example:** *Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001)* – The court prevented similar sounding drug names that could mislead consumers.				
34.	**Explain the factors considered by courts to determine Deceptive Similarity with one case example.** Courts in India examine multiple factors under **Section 11(1) of the Trade Marks Act, 1999**: 1. **Visual Similarity:** Resemblance in spelling, font, style, or appearance. 2. **Phonetic Similarity:** Similar pronunciation or sound. 3. **Conceptual or Structural Similarity:** Overall impression, ideas conveyed, and packaging. 4. **Nature of Goods/Services:** Same or closely related goods increase likelihood of deception. 5. **Distinctiveness of Original Mark:** Highly distinctive marks enjoy greater protection. 6. **Knowledge and Attention of Public:** Ordinary consumer's perception is considered — "eye of an average person." **Case Example:**	08	H	4	**CO5**

<table>
<tr><td></td><td>Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001) — Similar sounding drug names were held deceptively similar as they could confuse patients.</td><td></td><td></td><td></td><td></td></tr>
<tr><td>35.</td><td>Explain the difference between Assignment and Licensing of a Trade Mark with examples.

<table>
<tr><th>Basis</th><th>Assignment</th><th>Licensing</th></tr>
<tr><td>Ownership</td><td>Ownership of mark transfers fully</td><td>Ownership remains with licensor</td></tr>
<tr><td>Consideration</td><td>Usually involves payment or sale consideration</td><td>Licensor may receive royalties or fees</td></tr>
<tr><td>Scope</td><td>Can be partial or total; includes goods/services and goodwill</td><td>Only right to use under terms; no transfer of ownership</td></tr>
<tr><td>Legal Effect</td><td>Recorded in Register of Trade Marks to be valid against third parties</td><td>License agreement may or may not require registration</td></tr>
</table></td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
<tr><td>36.</td><td>Explain the measures to avoid Deceptive Similarity while registering a Trade Mark.

Measures to Avoid Deceptive Similarity:

1. Conduct Thorough Trademark Search:
o Check existing marks in Indian and international databases (TMR, WIPO, USPTO).
2. Consult IP Experts:
o Seek guidance from trademark attorneys for novelty and distinctiveness.
3. Avoid Copying Well-Known Marks:
o Steer clear of brand names, logos, or trade dress of established companies.
4. Ensure Distinctive Features:
o Unique spelling, design, color, and concept help prevent confusion.
5. Use Non-Generic Names:
o Avoid descriptive or commonly used words for goods/services.</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

	6. **Respond to Registrar Objections Promptly:** o Clarify differences if potential deceptive similarity is noted in Examination Report.				
37.	**Explain the different types of Trade Mark Transfers Under the Act.** **Types of Trade Mark Transfers:** 1. **Assignment (With Consideration):** o Sale or transfer of ownership for money or other benefits. o *Example:* Company sells its brand along with goodwill to another company. 2. **Transmission (Without Consideration):** o Transfer due to legal reasons, e.g., death of owner or insolvency. o Rights pass to **legal heirs or receivers**. 3. **Partial Assignment:** o Transfer limited to **specific goods, services, or territory**. o *Example:* Rights for "Tata" cars in India only. 4. **License vs. Transfer:** o License: Owner retains rights; licensee uses mark under agreement. o Transfer: Ownership moves entirely to the transferee.	08	M	3	**CO5**
	TOPIC ID 5 -ECO Label, Passing off, Infringement of Trade Mark with Case studies and Remedies				
38.	**Define Eco-Label. How does it differ from a Trade Mark?** **Definition of Eco-Label:** An **eco-label** is a mark or label placed on products to indicate that they **meet certain environmental standards** in terms of production, consumption, and disposal. It informs consumers about **eco-friendly or sustainable practices**. *Example:* Energy Star, Forest Stewardship Council (FSC) logo. **Difference from Trade Mark:**	08	M	3	**CO5**

	Basis / **Eco-Label** / **Trade Mark** **Purpose**: Indicates environmental or sustainability standards / Identifies origin or source of goods/services **Ownership**: Can be issued by government or independent bodies / Owned by individual, company, or organization **Legal Protection**: Protected under certification mark or eco-label regulations / Protected under Trade Marks Act, 1999 **Focus**: Environmental impact of product / Brand identity and commercial goodwill **Example**: "Energy Star" label / "Nike" logo				
39.	**Discuss the functions of Trade Marks and Eco-Labels.** **Functions of Trade Marks:** 1. **Source Identifier:** Indicates origin of goods/services. 2. **Quality Assurance:** Signifies consistent quality to consumers. 3. **Brand Promotion:** Helps in marketing and brand recognition. 4. **Legal Protection:** Provides exclusive rights against infringement. 5. **Economic Asset:** Can be licensed, sold, or franchised. **Functions of Eco-Labels:** 1. **Environmental Awareness:** Educates consumers about sustainability. 2. **Market Differentiation:** Helps eco-friendly products stand out. 3. **Consumer Confidence:** Ensures verified eco-compliance. 4. **Policy Implementation:** Supports government environmental policies. 5. **Corporate Responsibility:** Encourages companies to adopt sustainable practices.	08	M	3	**CO5**

<table>
<tr><td>40.</td><td>Explain the essential features of Infringement of Trade Mark under the Trade Marks Act, 1999with case example.

Section 29(1) of the Trade Marks Act, 1999 defines infringement as the unauthorized use of a registered trade mark in relation to goods/services for which it is registered, leading to confusion or deception.

Forms of Infringement:

1. Direct Infringement: Using identical mark on similar goods/services.
2. Deceptively Similar Marks: Using marks confusingly similar to registered marks.
3. Use in Trade without Authorization: Includes importing, selling, or advertising infringing goods.

Any one Example</td><td>08</td><td>H</td><td>4</td><td>CO5</td></tr>
<tr><td>41.</td><td>Explain the legal protection available for Eco-Labels and Trade Marks in India.

Trade Mark Protection (Trade Marks Act, 1999):

• Registered under TM Act (Sections 18–22).
• Provides exclusive rights to use the mark for specific goods/services.
• Remedies include injunctions, damages, and criminal penalties for infringement.

Eco-Label Protection:

1. Certification Marks (Section 2(1)(c) & 74 of TM Act):
o Eco-labels can be registered as certification marks.
o Third-party approval ensures compliance.
2. Government Regulations:
o Bureau of Indian Standards (BIS) issues Ecomark for environmentally safe products.
o Violations attract penalties under Consumer Protection Act or specific regulations.</td><td>08</td><td>M</td><td>3</td><td>CO5</td></tr>
</table>

	Example: • **Ecomark India** — mandatory standards for eco-friendly products. • **Energy Star label** — internationally recognized certification mark. Both trademarks and eco-labels can be legally protected, but eco-labels often require **certification and compliance verification**, while trademarks protect **brand identity and market goodwill**.				
42.	Explain the role of Eco-Labels and Trade Marks in promoting sustainable business practices. **Role in Promoting Sustainability:** **Trade Marks:** • Encourage brands to maintain **consistent quality** and responsible production. • Licensing of green brands promotes **eco-friendly business practices**. **Eco-Labels:** • Incentivize companies to **adopt environmentally safe methods**. • Help consumers make **informed choices** favoring sustainable products. • Facilitate **market recognition** for eco-conscious businesses. • Encourage **life-cycle assessment and resource efficiency**. **Case Example:** • *BIS Ecomark for soaps and detergents* → reduces chemical pollution and encourages biodegradable products. • *Forest Stewardship Council (FSC) certification* → promotes sustainable forestry practices.	08	M	3	**CO5**

43.	**Define Passing Off. How does it differ from Trade Mark Infringement?** Passing off is a **common law tort** that prevents a person from **misrepresenting their goods or services as those of another** to gain an unfair advantage. **Key Elements (Classical 'Jif Lemon' Case Principle):** 1. **Goodwill** – The original business has reputation in the market. 2. **Misrepresentation** – The defendant misleads the public. 3. **Damage** – The plaintiff suffers loss of goodwill or sales. **Difference from Trade Mark Infringement:**	08	M	3	**CO5**

Basis	**Passing Off**	**Trade Mark Infringement**
Law	Common law / Unregistered marks	Statutory law under Trade Marks Act, 1999
Registration Requirement	Not required	Must be a registered trademark
Focus	Protects goodwill	Protects registered legal rights
Remedies	Injunction, damages, account of profits	Injunction, damages, criminal penalties

44.	**Explain the essential elements of a Passing Off action with case example.** **Essential Elements of Passing Off:** 1. **Goodwill / Reputation:** o Plaintiff must have a recognizable brand, product, or service in the market.	08	H	4	**CO5**

	2. **Misrepresentation by Defendant:** o Defendant uses a similar mark, name, or packaging to mislead consumers. 3. **Likelihood of Deception / Confusion:** o Ordinary customers are likely to be confused about the origin of goods/services. 4. **Damage or Potential Loss:** o Plaintiff suffers loss of sales, reputation, or brand value. **Case Example:** *Reckitt & Colman Products Ltd. v. Borden Co. (Jif Lemon Case, 1990)* • Borden copied the lemon-shaped bottle of Jif; court held it passing off as it misrepresented the source and affected goodwill.				
45.					
46.					
47.					
48.					
49.					

Types of Intellectual Property, Patents: Introduction, Scope and salient features of patent, patentable and non-patentable inventions CO 4

Patent Procedure - Overview, Transfer of Patent Rights; protection of traditional knowledge, Infringement of patents and remedy, Case studies, TOPIC ID 2 CO5

Patent Search and Patent Drafting, Commercialization and Valuation of IP, Concept, function and different kinds and forms of Trade marks TOPIC ID 3 CO4

Registrable and non- registrable marks, Registration of Trade Mark; Deceptive similarity; Transfer of Trade Mark TOPIC ID 4 CO5

ECO Label, Passing off, Infringement of Trade Mark with Case studies and Remedies TOPIC ID 5 CO5